

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LETICIA M RODRIGUEZ,

Petitioner

VS.

WENWU JIN,

Respondent

) Case Number: FDI-19-792402

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Leticia M. Rodriguez and Respondent Wenwu Jin.
- 2) According to the Petition and Response, both parties indicate that the date of marriage is 8/8/08 and date of separation of 10/1/19 for a marriage of 11 years and 1.5 months.
- 3) On 2/18/26, Petitioner filed a Request for Order seeking \$40,000 in Family Code section 2030 attorney's fees. Petitioner asserts a disparity in income as Petitioner earns approximately \$200,000 per year working as a nurse while Respondent's earns more than \$1,000,000 per year from his urology practice and associated businesses. Petitioner states she has not received child or spousal support since January 2024, at which time significant arrears already existed.
- 4) On 2/18/26, Petitioner filed an Income and Expense Declaration.
- 5) On 2/18/26, Petitioner filed an attorney declaration substantiating Petitioner's request for \$40,000 in Family Code section 2030 attorney's fees.
- 6) On 2/18/26, Petitioner filed a Memorandum of Points and Authorities.

1 7) On 2/24/26, Petitioner filed a Proof of Service indicating the Request for Order and supportive
2 pleadings were served on Respondent by mail on 2/24/26.

3 8) Respondent did not file a Respondent Declaration.

4 **B. Findings and Order**

5 1) Petitioner's unopposed request for \$40,000 in Family Code section 2030 attorney's fees is
6 GRANTED.

7 2) The Court finds an award of attorney's fees and costs is appropriate here because there is a
8 demonstrated disparity between the parties in access to funds to retain or maintain counsel and in
9 the ability to pay for legal representation.

10 3) The Court further finds that Respondent has or is reasonably likely to have the ability to pay for
11 legal representation for both parties based on Petitioner's estimation of Respondent's income on
12 her Income and Expense Declaration filed 2/18/26, which was signed under penalty of perjury.
13 Petitioner estimated that Respondent earns \$127,500 per month based on Respondent's 2024 tax
14 return.

15 4) Finally, the Court finds \$40,000 in attorney's fees and costs is reasonable and necessary.

16 5) Respondent shall pay half of the balance (i.e., \$20,000) by 6/7/26 and the other half of the
17 balance (i.e., \$20,000) by 7/7/26.

18 6) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

19 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
20 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
21 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
22 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
23 proposed order after hearing directly to the court. Failure to submit the order after hearing within
24 10 days may allow the other party to prepare a proposed order and submit it to the court in
25 accordance with CA Rules of Court, Rule 5.125(d).